

06.12.2025

E.P.No.2/2023

ORDERS ON MEMO AND I.A.NO.III

The learned counsel for the Dhr filed memo stating that, the Dhr has taken possession of the suit property through court process. EP is fully satisfied. Hence, E.P may be closed.

2. The learned counsel for the Jdr filed I.A.No.II Under order 21 Rule 58 r/w. 151 of CPC and U/s.6 of Specific Relief Act seeking for restoration of his possession over suit property and further stated that he has legally disposed from the suit property.

3. Heard both sides.

4. The following points that arise for my consideration:

Point No.1:- Whether there is sufficient grounds for allow the I.A.No.III.?

Point No.2:-What Order ?

5. By considering the memo and I.A, and hearing of the parties, my answer for the above point is as under:

Point No.1:- In the Negative,

Point No.3:- As per final order

.....for the following:-

REASONS

7. **Point No.1:-** The learned Dhr submitted that in order to cause delay the present application is filed by the Jdr. The Jdr is very well aware about the pending of this E.P. He ha kept quite until completion of the process of execution of the warrant, at the fag end of the case, he has filed false application. Hence, prays to reject the application.

8. The learned counsel for the Jdr submitted that after Jdr challenged the Judgment and order passed by this court in O.S.No.4555/2020 before the Hon'ble High Court of Karnataka in RFA.No.410/2023, the Hon'ble High Court of Karnataka issued notice to Dhr. The Dhr has also appeared before the Hon'ble High Court of Karnataka in the said appeal. The Dhr has failed to comply the provision of order 21 Rule 34 (2) of CPC. He has not produced any E.C while executing of the sale deed. The Jdr has prima-facie case. Hence,

prays to allow the application and stay the proceedings and handover the possession in favour of the Jdr.

9. I have carefully perused the entire material on record. The Dhr has filed this Execution petition on 02.03.2023 and issued notice to the Jdr through paper publication. Notice to Jdr is served. In spite of that he has failed to appear before this court. Sale deed executed in favour of the Dhr through process. Thereafter, issued possession deliver warrant which was duly executed. In this case the Court Ameen has submitted his report, mahazar and possession receipt. The very object of the execution petition is already served.

10. Jdr not submitted regarding whether the execution of the Judgment and order passed by this court in O.S.No.4555/2020 is stayed by the Hon'ble High Court of Karnataka in RFA.No. 410/2023. By

considering all these aspects, I am of the opinion, present application is filed to defeat the very object of the speedy disposal of the case and to deny, obstruct the fruits of the decree. Therefore, I am of the opinion that there is no grounds to allow the I.A.No.III. Hence, point No.1 is answered in the Negative.

11. **Point No.3**:- In view of my findings on above points, I proceed to pass the following:

ORDER

An I.A.No.III filed by the Jdr is dismissed.

The Memo filed by the Dhr is hereby allowed and E.P is closed as fully satisfied.

(Typed by the Stenographer on my dictation, the transcript revised and then pronounced by me in open court on this the 6th day of December, 2025.)

I P NAIK
(Sri. I. P. Naik)
LXIII ADDL CITY CIVIL & SESSIONS
JUDGE (CCH) 6-4, BENGALURU CITY
Digitally signed
by I P NAIK
Date: 2025.12.11
13:03:38 +0530

(order typed vide separate sheet)

ORDER

The compromise petition filed by the plaintiff and the defendant U/Or-XXIII Rule-3 of CPC, is here by allowed.

Further, in view of the terms and conditions of the compromise, revocation of GPA dated 10.11.2016 is hereby cancelled subject to following conditions:-

1. This order or compromise shall not binding on M/s. Sports Outrich India Limited, Trust, who is Plaintiff No.1 in O.S.No.9015/2012.

2. This order or compromise shall not binding on Robin paul who is plaintiff No.2 in O.S.No.9015/2012.

3. This order and compromise shall not effect on merits of the suit O.S.No.9015/2012.

4. this order and compromise shall not effect on protection of plaintiff No.1 in O.S.No.9015/2012 as protected by granting temporary injunction in the said suit.

(Sri. I. P. Naik)
LXIII ACCL & SJ
(CCH-64), BENGALURU

CITY.